

PONTE v PERREIRA, JR.

23CV47125

PLAINTIFF'S MOTION TO COMPEL RESPONSES TO INTERROGATORIES; PLAINTIFF'S MOTION TO COMPEL ATTENDANCE AT DEPOSITION

This is a quiet title action to confirm an easement over property belonging to Defendant Alfred R. Pereira, Jr. individually and as Trustee for the Alfred R. Pereira Trust ("Defendant.") Before the Court are two motions to compel brought by Plaintiff Larry E. Ponte ("Plaintiff.") The motions are unopposed.

I. Factual and Procedural Background

A. Background Facts

Plaintiff owns a lot in Calaveras County, Assessor's Parcel Number (APN) 050-008-016-000, ("Plaintiff's Lot"). Defendant owns a lot in Calaveras County, APN 050-008-043-000 ("Defendant's Lot"). Plaintiff accesses his lot by crossing an unnamed road ("Road") on Defendant's lot.

The Road departs Hogan Dam Road and travels across several lots including a lot owned by a non-party named Josh ("Josh's Lot.") Josh has not denied Plaintiff access across his lot. Plaintiff alleges that there are no other roads that lead onto Plaintiff's Lot, and that he is surrounded by other owners' parcels. Plaintiff has used the Road since 1983. At some point in December of 2023, Defendant stopped allowing Plaintiff to cross Defendant's Lot to gain access to Plaintiff's Lot.

B. Discovery and Responses

On July 26, 2024, Plaintiff served discovery requests on Defendant, via his then-counsel Stephanie Finelli (“Finelli”) including Form Interrogatories (Set No. 1) (“FROG”) which are the only written discovery requests at issue. (Declaration of Stacy A. Tyler (“Tyler Decl.”) ¶ 3.) After mutual extensions, the FROG responses were due on September 23, 2024. (*Id.* ¶ 6.) On or around September 13, 2024, the parties tentatively agreed to a resolution whereby Plaintiff would have access to Plaintiff’s Lot via a different portion of Defendant’s Lot. (*Id.* ¶ ¶ 7-8.) On September 13, 2024, the parties, a surveyor and Plaintiff’s counsel went to the properties to look at the new easement location; however, Defendant abruptly yelled, left the scene, and rescinded the settlement offer. (*Id.* ¶ 9.)

Despite this abrupt exit, Defendant then resumed settlement discussions and discovery was postponed. (*Id.* ¶ 10.) On October 7, 2024, Defendant served discovery responses to various written discovery but failed to respond at all to the FROGs. (*Id.* ¶ 14.) On October 8, 2024, Plaintiff’s counsel sent a meet-and-confer letter to Finelli about the defective discovery responses. (*Id.* ¶ 15, Ex. C.) To this letter, Finelli responded that she thought they were settling the dispute and thereafter both attorneys agreed to an extension until November 8 to file responses and then 45 days thereafter to file a motion to compel. (*Id.* ¶ 16.) Upon Defendant’s request, Plaintiff granted an additional extension of response time to November 15, 2024. (*Id.* ¶ 17.) The parties then agreed to another extension until December 2, 2024, because the matter appeared close to resolution. (*Id.* ¶ 18.)

On November 19, 2024, Finelli emailed a proposed easement description which imposed significant restrictions on Plaintiff’s use of the easement. (*Id.* ¶ 19.) Plaintiff did not agree to those restrictions and, thereafter, the parties agreed to further extensions on discovery responses. (*Id.* ¶ ¶ 20-21.) On December 17, 2024, Defendant provided supplemental responses to other written discovery but again failed to provide responses to the FROGs. (*Id.* ¶ 22, Ex. D.) During meet and confer efforts, Finelli explained that Defendant was difficult to reach and lived a distance from counsel, thus getting information had been difficult. (*Id.* ¶ 23.) However, Finelli agreed to provide the FROG responses by February 26, 2025, and Plaintiff would then have an additional 45 days to file a motion to compel. (*Id.* ¶ 24, Ex. E.)

On February 15, 2025, Plaintiff’s counsel learned that Finelli was no longer representing Defendant (substitution of counsel was filed with the Court on 2/19/2026.) (Tyler Decl. ¶ 25.) During a follow up email conversation, Plaintiff’s counsel sought clarification on the status of the FROG responses, and Finelli responded that Defendant knew of the outstanding requests and to follow up with him. (*Id.* ¶ 26.)

Throughout the month of April, Plaintiff’s counsel attempted to reach Defendant on numerous occasions, without success. (Tyler Decl. ¶ 27.) In June of 2025, Defendant

obtained new counsel – Randy Thomas (“Thomas”) – who requested copies of the previously provided discovery amid continued requests for the FROG responses. (*Id.* ¶ 29.) Defendant provided some supplemental responses in September 2025 but again failed to respond at all to the FROGs. (*Id.* ¶ 31.) After some meet and confer efforts, Defendant’s counsel agreed to provide responses to the FROGs by May 1, 2026. (*Id.* ¶ 33.) On May 6, 2024, Thomas’ office advised Plaintiff’s counsel that Defendant had ended their relationship and that Defendant was aware of his noticed deposition set for May 11, 2026. (*Id.* ¶ 35.)

As regards the Defendant’s deposition, Plaintiff’s counsel initially served a Notice of Deposition for Defendant, via Attorney Thomas, to take place on October 27, 2025. (Declaration of Stacy A. Tyler ISO MTC Deposition (“Tyler Depo Decl.”) ¶ 3, Ex. A.) Due to Defendant having health problems, the deposition was rescheduled for December 18, 2025, and then again to January 29, 2026. (*Id.* ¶ 4, 5.)

Defendant appeared at his deposition on January 29, 2026, but refused to answer any questions and abruptly left the deposition. (Tyler Depo Decl. ¶ 6.) Thereafter, Plaintiff’s counsel attempted meet and confer efforts, and the parties agreed that the deposition would take place and Defendant would pay the court costs associated with the missed deposition. (*Ibid.* ¶ 7.) Plaintiff then properly noticed Defendant’s deposition for May 11, 2026. (*Id.* ¶ 8.) Defendant did not appear for his deposition, did not notify Plaintiff’s counsel of his intention not to appear, and did not object to the deposition. (*Id.* ¶ 10.)

Defendant has failed to appear for his deposition and has not provided responses to the FROGs. (Tyler Decl. ¶ 36.) During a phone call in which Plaintiff’s counsel advised Defendant of his need to respond to these obligations, he stated, “No, I don’t,” and hung up the phone. (*Ibid.*) Despite promises to do so, Defendant has also failed to pay for the costs associated with the failed deposition.

The instant motions to compel followed.

II. Legal Standard

Pursuant to Cal. Code Civ. Proc. § 2030.290, if a party to whom interrogatories are directed fails to serve a timely response, then:

- (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on

the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2030.210, 2030.220, 2030.230, and 2030.240.

(2) The party's failure to serve a timely response was the result of mistake, inadvertence, or excusable neglect.

A party moving to compel initial responses under these sections is not required to meet and confer. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 411.)

Any party may obtain discovery, subject to restrictions, by taking the oral deposition of any person, including any party to the action. (Code Civ. Proc., § 2025.010.) A properly served deposition notice is effective to require a party to attend and to testify, as well as to produce documents for inspection and copying. (Code Civ. Proc., § 2025.280 (a).) The party served with a deposition notice waives any error or irregularity, unless that party promptly serves a written objection at least three calendar days prior to the date for which the deposition is scheduled. (Code Civ. Proc., § 2025.410 (a).) If, after service of the deposition, notice, a party fails to appear for examination, the party giving notice may move for an order compelling attendance and testimony. (Code Civ. Proc. § 2025.450(a).)

III. Analysis

A. Form Interrogatories

Defendant was properly served with the FROGs and has failed to respond, despite being given numerous opportunities to do so. He has not opposed the motion to compel and has provided no explanation for these failures.

Accordingly, the **motion to compel responses to FROGs is granted**. Defendant is to provide code-compliant responses, without objection, within fifteen (15) days of this Order.

B. Deposition

Defendant was properly served with a noticed deposition and failed to appear or object. Accordingly, the **motion to compel attendance at the deposition is GRANTED**. Defendant is to appear at a deposition at a date and location of Plaintiff's choosing, to occur within thirty (30) days of this Order.

C. Sanctions

California Rule of Court, rule 3.1348(a) states: "The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

Sanctions are mandatory for the failure to attend or properly object to the deposition because Defendant has provided no substantial justification for his refusal. (Code Civil Procedure § 2025.040(g)(1). Plaintiff's counsel avers that she has expended sixteen (16) hours in pursuit of Defendant's deposition at a rate of \$425 per hour. The Court finds the hourly rate is high for this area and reduces it to the market rate of \$300 for a total of \$4,800.00. The Court also orders Defendant to pay the costs associated with the two missed depositions in the amount of \$2,103.40. **The total sanction amount for the missed depositions is therefore \$6,903.40.**

The Court may also impose sanctions for the failure to respond to the FROGs. (Code Civ. Proc. § 2023.030(a).) After reviewing the moving papers, the Court concludes that sanctions are appropriate given Defendant's repeated reluctance (and even hostility) to participate in this matter. Plaintiff's counsel seeks \$9,562.50 based on 19 hours of related work at a rate of \$425.00. As stated above, \$425 is excessive for this area and the Court reduces the hourly rate to \$300.00. Additionally, while Plaintiff's counsel avers, she spent ten hours on the motion to compel, the Court finds it substantially overlaps with the simultaneously filed motion to compel deposition and accordingly reduces the

hours spent to four (4) hours. Accordingly, the **Court grants sanctions against Defendant for the failure to respond to FROGs in the amount of \$3,900.00.**

Defendant is ordered to pay total sanctions in the amount of \$10,803.40 within twenty (20) days of this Order.

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order in conformity with this Ruling concerning FROGs; the Court intends to sign the submitted (Proposed) Order regarding the Motion to Compel Deposition.

SANCHEZ v SENDER'S MARKET, INC., et al

24CV47302

**DEFENDANT'S MOTION TO COMPEL PLAINTIFF
RESPONSES TO REQUEST FOR PRODUCTION OF
DOCUMENTS, SET TWO, AND SANCTIONS**

This is a breach of contract claim brought by Cynthia Sanchez ("Plaintiff") against a variety of defendants, including Roth Industries, Inc. ("Roth.")

Now before the Court is Roth's motion to compel. The motion is unopposed.

On February 11, 2026, Roth served Plaintiff with Requests for Production of Documents, Set Two ("RPD2) (Declaration of Oliver J. Larrivee ("Larrivee Decl.") ¶ 2.) Responses were due on March 17, 2026, but to date no responses have been received and Plaintiff has not requested an extension. (*Id.* ¶ 4.) Roth's counsel attempted to meet and confer with Plaintiff's counsel via email and unilaterally extended the response time to April 6, 2026. (*Id.* ¶ 5, Ex. C.) It is unclear whether Plaintiff's counsel responded, but either way, no responsive documents or answers were provided. (*Id.* ¶ 6.)

Pursuant to Code Civ. Proc. section 2031.300, if a party to whom requests for production of documents fails to serve a timely response, then:

(a) The party to whom the demand for inspection, copying, testing, or sampling is directed waives any objection to the demand, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). The court, on motion, may relieve that party from this waiver on its determination that both of the following conditions are satisfied:

(1) The party has subsequently served a response that is in substantial compliance with Sections 2031.210, 2031.220, 2031.230, 2031.240 and 2031.280.